# Evidence Before Entitlement

*Provenance as an Institution of Economic Memory*

**Joseph Richard Harmon**

Independent Researcher
Mill Creek, Washington, United States
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## Abstract

Economic justice is often asked to decide too much from too little. Institutions preserve title, possession, contract, payment, and transfer with great precision, yet they frequently preserve the causal history of value creation only incompletely. The result is not merely an accounting deficiency. It is an evidentiary deficiency that affects every later argument about fairness, legitimate entitlement, ownership, allocation, and rectification.

This paper advances a narrow claim. Provenance should be treated as an institution of economic memory: a governed evidentiary record of who contributed what, when, under what conditions, through which dependencies, and with what observable connection to later outcomes. Provenance does not itself decide what anyone deserves, owns, or must be paid. It makes those questions more honest by improving the evidence to which moral, legal, economic, and institutional principles are applied.

The paper distinguishes contribution from performance, attribution, desert, ownership, entitlement, allocation, and payment. It presents the canonical PBS/MPS analytical sequence of Provenance, Performance, Attribution/Allocation, and Entitlement/Payment, while explaining why each transition requires an independent warrant. It then sets out the conditions under which provenance evidence can be institutionally credible: relevance, verifiability, contestability, proportionality, uncertainty disclosure, privacy protection, and governance against capture. The conclusion is restrained but unequivocal: evidence must precede entitlement, because an economy cannot evaluate the justice of its holdings responsibly when it remembers possession more faithfully than contribution.

## I. The Problem of Institutional Amnesia

Modern economies are not without memory. They possess elaborate systems for remembering ownership. Land registries preserve title. Corporate ledgers preserve equity. Banks preserve payment. Patent offices preserve claims of invention. Copyright systems preserve protected expression. Contracts preserve agreed obligations. Courts preserve judgments. These institutions answer a necessary question: who presently holds the recognized right?

They do not always answer a different question with comparable precision: how did the value represented by that right come into existence? A title records title, not the entire history of creation. A contract records agreement, not every condition shaping bargaining power. A balance sheet records position, not the full causal biography of productive value. An intellectual-property registration may identify a legally recognized author or inventor while omitting collaborators, prior knowledge, institutional support, public investment, data sources, operational refinements, and cumulative dependencies that made the recognized asset possible.

This asymmetry creates institutional amnesia. The economy remembers final possession with greater fidelity than it remembers antecedent contribution. Later disputes about justice therefore begin with a record that may be legally operative yet historically incomplete.

The claim is not that present ownership is invalid whenever its history is incomplete. Nor is it that every contributor possesses a residual property right. The claim is prior and evidentiary: the quality of a judgment concerning fairness or entitlement depends partly upon the quality of the history available to the decision-maker.

## II. The Prior Question

Disputes about economic justice often move immediately to distribution. Who should receive income? Who should own an asset? Which inequalities are justified? Which transfers require rectification? Those questions cannot be avoided, but they are not always first.

Before asking what a person deserves, an institution may need to ask what occurred. Before deciding whether a holding has a legitimate history, it may need evidence of acquisition, contribution, consent, transfer, dependence, exclusion, and capture. Before allocating value among collaborators, it may need to know whether the claimed contributions were identifiable, material, persistent, substitutable, complementary, or jointly constitutive.

The prior question is therefore:

**What actually happened in the creation, development, transfer, and capture of the value now represented by a holding?**

Facts do not generate duties by themselves. Better evidence cannot eliminate normative disagreement. But a theory of justice should not depend upon avoidable ignorance, and a theory of entitlement should not claim historical legitimacy from a record that preserves transfer while obscuring creation.

## III. The Categories That Must Not Be Collapsed

The central discipline of provenance-based analysis is categorical separation. The framework fails if evidence is treated as a moral verdict or if documentation is treated as automatic title.

| Category | Meaning in this framework |
|---|---|
| **Contribution** | An identifiable input, act, judgment, resource, decision, expression, improvement, or sustained practice that may bear a causal relationship to an outcome. |
| **Provenance** | The traceable causal and transactional history of an asset, outcome, or contribution, including relevant context, dependencies, transfers, and claims. |
| **Performance** | Observable evidence concerning what an asset, system, or contribution set does and how it performs under specified conditions. |
| **Attribution** | An estimate of how documented inputs relate to an observed outcome, including marginal effects, interaction effects, persistence, substitution, and uncertainty. |
| **Desert** | A normative judgment about what recognition, reward, burden, or standing is morally appropriate. |
| **Ownership** | A legally constituted bundle of powers, claims, privileges, immunities, duties, and limitations |

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| | concerning a resource or interest. |
| **Entitlement** | A justified claim under the governing moral, legal, contractual, or institutional account. |
| **Allocation** | A rule or decision assigning shares, responsibilities, recognition, or economic participation. |
| **Payment** | The execution of a legally or contractually recognized obligation through wages, royalties, licenses, distributions, damages, restitution, or another mechanism. |

These categories can inform one another, but no category simply becomes another. Contribution is not desert. Performance is not attribution. Attribution is not ownership. Ownership is not proof of moral desert. A documented contribution does not create a royalty unless a valid agreement, statute, judgment, or institutional rule supplies the entitlement. The dignity of the person precedes the account; the account measures only what it was constructed to measure.

## IV. The Canonical Analytical Sequence

The PBS/MPS framework is best understood as a sequence of institutionally distinct questions rather than as a single machine that converts records into rights.

**1. Provenance** Who contributed what, when, and in what context? What evidence supports the record? What prior contributions, conditions, permissions, and dependencies are relevant?

**2. Performance** What observable outcome occurred? Which domain-appropriate measures describe that outcome? How reliable are the measures, baselines, and comparison conditions?

**3. Attribution and Allocation** How do the documented contributions relate to the measured outcome? What uncertainty, interaction, persistence, substitution, and counterfactual limitations affect the estimate? Under what allocation rule, if any, should estimated contribution be translated into a share?

**4. Entitlement and Payment** What legal, contractual, moral, regulatory, or governance rule recognizes the allocation as an enforceable claim? Through what instrument or remedy is that claim executed?

The sequence can stop at any stage. A provenance record may be useful without a performance claim. Performance evidence may be available without reliable attribution. Attribution may be possible without any recognized entitlement. An entitlement may exist without a tradeable security. The refusal to force every record toward ownership is a feature of the framework, not a failure of ambition.

## V. Provenance as Economic Memory

Provenance is not a synonym for blockchain, tokenization, or public disclosure. Those are possible implementation choices. The institutional function is more basic: to preserve relevant history in a form that can be examined, challenged, corrected, and applied by legitimate decision-makers.

An institution of economic memory performs at least six functions:

- Identity and context: it links a contribution to a verified person, group, institution, or lawful pseudonymous identity without requiring unnecessary exposure.

- Temporal order: it records when a contribution entered a process and how later developments depended upon it.
- Dependency: it preserves relationships among prior knowledge, common infrastructure, collaborative inputs, and downstream use.
- Evidentiary integrity: it distinguishes assertion, attestation, measurement, inference, dispute, correction, and final determination.
- Contestability: it permits affected parties to challenge omission, misattribution, erroneous inclusion, or exaggerated causal significance.
- Continuity: it allows later institutions to examine the same history even when employment, corporate control, technology, or market structure has changed.

Economic memory is therefore not valuable because it makes every contribution ownable. It is valuable because it prevents later institutions from treating the visible holder as the only historically relevant actor.

## VI. Evidence Standards

A provenance system should not be trusted merely because it is technically elaborate. Its legitimacy depends upon the quality and governance of its evidence.

**Relevance:** The record should contain information material to the institutional question and exclude data collected merely because collection is possible.

**Verifiability:** Claims should be supported by evidence whose source, method, date, and limitations can be examined.

**Proportionality:** The burden, cost, privacy intrusion, and consequence of recording should be proportionate to the importance and reliability of the claim.

**Contestability:** Affected persons must receive meaningful notice, access, correction, response, and appeal rights.

**Uncertainty disclosure:** Attribution should be expressed with confidence ranges, assumptions, competing models, and acknowledged counterfactual limits rather than false precision.

**Domain validity:** Measures must fit the epistemic structure of the field. A metric suitable for crop yield may be unsuitable for creative, civic, clinical, or collaborative judgment.

**Independence:** Evidence providers and adjudicators should be protected against conflicts of interest and capture.

**Reversibility:** Erroneous records and consequences must be correctable. Immutability of audit history must not become immutability of error.

**Purpose limitation:** Records collected for attribution should not silently become instruments of surveillance, discrimination, credit scoring, employment exclusion, or human ranking.

**Governance:** Rules for access, measurement, model revision, sanctions, and dispute resolution must be publicly intelligible and accountable to affected participants.

## VII. The Problem of Causation

The most difficult provenance question is not whether an input existed. It is whether, and to what extent, the input mattered to the outcome under examination.

Productive activity is frequently cumulative, collaborative, path-dependent, and interactive. One contribution may be indispensable yet produce little value by itself. Another may be highly visible but easily substitutable. Early work may shape the possibility set for everything that follows, while later work may produce the immediately observable improvement. Common infrastructure, education, public knowledge, organizational capital, inherited advantage, and complementary labor may all affect the result.

No serious attribution framework may assume that every contribution is discrete, separable, or commensurable. It must test identifiability, materiality, persistence, interaction, substitution, and counterfactual plausibility. Where those conditions are weak, the permissible institutional consequence should weaken with them. Imperfection of measurement is not an argument for blindness, but uncertainty is an argument against overclaiming.

## VIII. Evidence and the Theories of Justice

Provenance does not replace a theory of justice. It changes the evidentiary conditions under which competing theories operate.

A structural theory may ask whether social and institutional conditions were fair, whether bargaining power was distorted, and whether advantages arose from circumstances for which persons cannot plausibly claim moral credit. A historical theory may ask whether acquisition, transfer, consent, and rectification occurred through legitimate processes. A desert theory may ask which contributions express agency and which rewards appropriately recognize them. A capabilities account may ask whether persons possess substantive freedom to convert resources into valuable forms of life.

These theories need not reach the same conclusion from the same evidence. But each has reason to resist a moralized history unsupported by the facts. Shared evidence is not shared doctrine. It is a disciplined meeting ground for disagreement.

## IX. Evidence in Law

Law already distinguishes evidence from right. A receipt may prove payment without creating title. A laboratory record may support inventorship without resolving ownership. Employment records may establish participation while a contract assigns resulting rights elsewhere. A chain of custody may establish authenticity while leaving admissibility or legal consequence contested.

Provenance should enter law in the same disciplined way. It may support questions of authorship, inventorship, consent, reliance, unjust enrichment, restitution, fiduciary obligation, chain of title, damages, licensing, or rectification. Its legal consequence remains dependent upon the governing doctrine, agreement, statute, remedy, and jurisdiction.

This distinction protects both contributors and lawful holders. It prevents possession from masquerading as a complete history, while preventing every historical input from becoming an automatic veto, lien, or property claim. Evidence opens the inquiry. Law supplies the rule of decision.

## X. Objections and Replies

### A. "The record will be incomplete."

Yes. Every institutional record is incomplete. The relevant comparison is not between provenance and omniscience, but between governed evidence and avoidable opacity. The proper response is claim-status labeling, uncertainty disclosure, bounded use, and correction rights.

### B. "Measurement will be gamed."

Often it will be attempted. Metrics create incentives, and incentives can corrupt the metric. A viable system therefore requires independent validation, adversarial testing, multiple evidence streams, auditability, sanctions, and the authority to decline attribution when the evidence is not robust.

### C. "Provenance will commodify the person."

It could, if the record were allowed to become a score of human worth or a compulsory market identity. The framework rejects that use. The person is not an asset. A documented contribution may be evaluated for a defined institutional purpose; dignity, citizenship, basic rights, and moral standing remain prior to and independent of economic measurement.

### D. "History will create endless liability."

Not every historical relationship requires a remedy. Limitation periods, reliance interests, consent, materiality thresholds, administrability, burdens of proof, and remedial proportionality remain essential. Provenance improves the record; it does not abolish legal finality.

### E. "Markets already price contribution."

Markets price exchange under existing endowments, institutions, bargaining positions, information, and legal rights. A market price can convey valuable information without establishing who created the underlying capacity, whether the bargaining conditions were fair, or whether the legal allocation captured all materially relevant contributors.

### F. "Better evidence will settle justice."

It will not. Evidence can narrow factual disagreement and expose unsupported narratives. It cannot decide the moral weight of agency, need, equality, liberty, inheritance, public investment, or common ownership without additional normative judgment.

## XI. Institutional Boundaries

A provenance institution should not be deployed merely because data can be collected. Use should be refused or constrained when:

- contribution cannot be identified with sufficient reliability;
- performance evidence lacks a valid baseline or meaningful outcome measure;
- attribution depends upon speculative counterfactuals presented as precision;
- privacy, autonomy, or security costs exceed the likely benefit;
- participants cannot realistically contest the record or its consequences;

- measurement would predictably crowd out unmeasured but socially necessary activity;
- a contribution record would become a prerequisite for dignity, housing, employment, public benefits, citizenship, or equal legal standing;
- administration costs exceed the value of the information produced;
- governance is susceptible to control by the parties whose claims require scrutiny; or
- the proposed consequence exceeds the confidence and scope of the evidence.

The architecture is therefore conditional. It is strongest where the contribution is identifiable, the outcome is observable, causal analysis is proportionate, affected parties possess procedural rights, and the governing institution can acknowledge what it does not know.

## XII. The Unequivocal Claim

The argument of this paper can now be stated precisely.

**A society that preserves the provenance of value can evaluate claims of fairness and entitlement more honestly than a society that records final possession while leaving the history of creation obscure.**

This claim does not establish that every contribution creates property. It does not prescribe equality of holdings. It does not authorize a universal market in human identity. It does not replace law, politics, or moral judgment with a ledger. It states that avoidable institutional amnesia is not neutrality.

Fairness requires memory of conditions. Entitlement requires memory of actions. Rectification requires memory of wrongs. Legitimate ownership requires institutions capable of distinguishing recognized title from the whole history of value.

Evidence must therefore come before entitlement. Not because evidence decides justice, but because justice should not be asked to decide upon a history the economy chose not to remember.

## Conclusion

The first responsibility of a provenance-based economy is not to distribute. It is to remember responsibly. That responsibility requires more than technical persistence. It requires disciplined categories, credible evidence, procedural rights, institutional restraint, and the willingness to leave some questions unresolved when the record cannot support a stronger claim.

The Meritocratic Provenance System begins from this boundary. Provenance establishes an evidentiary history. Performance supplies observable outcome information. Contribution decomposition estimates relationships under uncertainty. Allocation applies an explicit rule. Entitlement arises only where a valid moral, legal, contractual, or institutional warrant recognizes the claim. Payment follows the warrant; it is not manufactured by the record alone.

The moral purpose of economic memory is therefore neither surveillance nor automatic ownership. It is to prevent possession from becoming amnesia, and to prevent amnesia from presenting itself as justice.

## Claim-Status Note

This paper is an author synthesis and normative institutional proposal. It does not claim that PBS/MPS is a deployed production system, that provenance evidence automatically creates legal rights, that contribution attribution is universally measurable, or that any resulting instrument has a predetermined

legal classification. Implementation, legal effect, and empirical validity remain specific to the evidence, domain, governance structure, agreement, and applicable law.

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